

Subject: Sample of Greg Chistiana's denying my ability to petition Town Meeting
From: Stephen Harrington <sth.alist@gmail.com>
Date: 10/25/23, 13:40
To: Jim Feeney <JFeeney@town.arlington.ma.us>, Michael Cunningham <mcunningham@town.arlington.ma.us>, Greg Christiana <gchristiana@town.arlington.ma.us>
BCC: Joe Kerble <brotherslawn@hotmail.com>, Matt Hanley <route2sales@gmail.com>

All,

I think it is important for the Town's lawyer and his boss, the town manager, neither of whom have been involved in their current capacities from the beginning of Greg Christiana's role as Town Meeting Moderator, to have a sample of my petitions to Town Meeting that Greg Christiana has decided to withhold from Town Meeting.

Greg, please, confirm for the Town's lawyer that you have not allowed any of the 5 petitions below to be submitted through the only official channel of written speech with Town Meeting.

Also, the Town Manager should recall, Greg Christiana has a history of avoiding his responsibilities under the law; hiding literally hundreds of emails pertaining to item #1 below from a public records request.

My demand stands; issue an apology tonight at Town Meeting for everyone you have denied the right to petition that public body.

Stephen Harrington
BCC: to public repository

#1

From: **Stephen Harrington** <sth.alist@gmail.com>
Date: Mon, Apr 25, 2022 at 8:58 AM
Subject: Re: Town Meeting Petitions by Ordinary Citizens
To: Greg Christiana <GChristiana@town.arlington.ma.us>
Cc: Douglas Heim <dheim@town.arlington.ma.us>, Adam Chapdelaine <AChapdelaine@town.arlington.ma.us>

Dear Town Meeting Moderator Greg Christiana,

Please, distribute this email and your response from early this morning (below) to the Town-managed Town Meeting Members Email List before any vote is taken in regards to holding a remote Town Meeting for 2022.

tl;dr Town Meeting Members - I urge you to Vote NO on continuing Remote Town Meeting due to lack of public accommodation.

In the recent past, advocacy, informational materials and pamphlets were routinely distributed on Town Meeting Members chairs at Town Hall without any content review or signature required (for material unrelated to motions).

This established and traditional public forum was an ongoing, standard practice. I distributed materials in this manner on several occasions with the generous assistance (printing) of the Town Manager's office.

Further, there were many occasions where unsigned pamphlets, a few reprehensible, were left on Town Meeting Member seats without any restrictions from prior Town Meeting Moderators.

The public's ability to express their opinion by leaving materials "on the seats" established Town Hall as a public forum for Town Meeting - as it has been and should remain to be.

About 10 years ago, a Town Meeting Member (Rich Carriero) started a private email distribution list, which was later adopted by the former Town Moderator, to facilitate distribution of informational materials to Town Meeting Members. This "email list" was in addition to the established practice of "on the seats" communication.

The proposed vote, that you advocated for thru the Town-managed Town Meeting Members Email List, is to continue remote Town Meetings and eliminate the public's ability to express themselves to Town Meeting Members without your personal approval of the content.

Further, you have decided unilaterally, or perhaps with the advice of Town Counsel (copied here), to restrict anonymous speech.

Even a cursory google search of "anonymous pamphleteering" results in germane SCOTUS rulings on this very question. In [McIntyre V Ohio, 1995](#), the majority opinion clearly and succinctly states in support of anonymous political speech:

" . . . anonymous pamphleteering . . . [has] an honorable tradition of advocacy and of dissent. Anonymity is a shield from the tyranny of the majority. . . . It thus exemplifies the purpose behind the Bill of Rights, and of the First Amendment in particular: to protect unpopular individuals from retaliation and their ideas from suppression at the hand of an intolerant society."

Words of wisdom with relevance today.

Obviously, even to a non-lawyer, your stated goal to restrict electronic communications to public officials based on your opinion of the content, is unseemly, at best.

Further, you have a distorted understanding of the role you, or any public official, has in public discourse.

You write: "Requiring clearly marked authorship helps ensure **accountability**".

I am not accountable to you. The actions and speech of the general public is not accountable to you or any public official.

You, as an elected Town Meeting Moderator, are accountable to the public, including me.

Town Meeting is not some Facebook group or Discord channel inhabited by sleep deprived gamers. I'll chalk up your proclivity for controlling the content of speech by members of the public in an established public forum as inexperience.

However, without essentially the same accommodations of public communications to Town Meeting Members; free of your content review and providing for anonymous advocacy, I have deep concerns about the validity of Arlington's 2022 annual Town Meeting.

Regards,

Stephen Harrington
Columbia Road

#2

From: **Stephen Harrington** <sth.alist@gmail.com>
Date: Sat, Apr 30, 2022 at 8:54 AM
Subject: Distribute to Town Meeting Members Email List
To: Greg Christiana <gchristiana@town.arlington.ma.us>

Dear Town Meeting Meeting Moderator Greg Christiana,

Please, post to the Arlington Town Meeting Members Email List.

=====

We raised our family in Arlington because it was safe, affordable and convenient.

Convenient

Bounded by Route 2 on the south, while a short drive down Rt16 brings you to Rt93, made

Arlington a commuter paradise. Logan airport can be 15 minutes away during off peak hours. I commuted to Manhattan weekly for a few years; many times from my house in Arlington to my desk in midtown in about one hour.

The Alewife terminal, an easy walk for 1/3 of Arlington residents, served by extensive bus lines for the remainder of residents, provided convenient access to Cambridge and Boston. From the age of 12, and for the next two decades, public transportation was a daily part of our lives. It continues to be the same for our children who also became daily T-riders into Boston starting at the age of 12.

Uncluttered roads with few obstructions or parking meters made the quick run into local shops convenient; breakfast on the go @Christos at Lake and Mass Ave - yum. Parking for visitors, shoppers and workers never was a problem in Arlington.

Arlington was convenient.

The proliferation of poorly timed and coordinated lights on most every intersection from Highland Ave to Spy Pond Lane along Mass Ave; the removal of parking and roadway infrastructure; and the failure to address issues of road infrastructure makes commuting, shopping and visiting Arlington less convenient; less of a town like Lexington or Winchester and more of a city like Malden or Cambridge.

Ever notice traffic drops dramatically during school breaks?

Inconvenience of mobility is a self-inflicted wound. Town Meeting played its part; look up the Christos chatter at prior Town Meetings in the archives.

Affordable

This will be addressed soon; but you all know how affordable Arlington has become.

Safe

Arlington has a long history of public safety. For generations, the blue collar residents produced and exported cops to surrounding communities. Did you know an Arlington native, from a well known and active Arlington family, was one of the top law enforcement officials in the United States, serving as the director of the US Secret Service, before and during the Obama administration?

Look it up.

Arlington now imports cops less familiar with residents and Arlington's history and have documented challenges attracting and retaining new officers.

One would be hard pressed to find instances of brutality, criminal behavior, deadly

shootings, successful law suits, or really anything of life threatening consequence that involves the Arlington Police Department over the past 50 years. Incidents that we so often hear about in many other communities.

Arlington's culture of supporting their sons and daughters, tasked with keeping everyone safe, has been accomplished for generations; mistakes and all.

Late last year, I became aware of graffiti, with the acronym FTP - Fuck The Police, on an empty, very visible, commercial building on Broadway. It took the Town too long to remedy the situation; many of you were copied on the two complaints I made. Still waiting to hear from the Human Rights Commission.

During the investigation, I asked two young patrolmen, not residents of Arlington, about the slur. They were demoralized.

Demoralized.

That said, I am not a police fanboy.

Unlike all of you; the Arlington Police have been used by public officials on 6 separate occasions to intimidate me when I pointed out the official's poor, and sometimes illegal, behavior. I have the videos to substantiate this.

Some of you have tried to use the Arlington police because I sent you an email, much in tone and content as this email. Public records exist documenting this.

It's not just me.

A former Selectwoman sent the police after a fellow TMM and very public pacifist because Lawrence used the phrase "go nuclear" in an email exchange. School department employees routinely use police to silence residents. One resident, who desperately advocated, albeit inappropriately, for services for their special needs child, lost that under-served child to suicide soon after high school. I know dozens of examples of public officials using the Arlington police to intimidate residents who have legitimate complaints.

Which brings us to this Town Meeting's actions.

You all, overwhelmingly, passed a bylaw to establish an oversight committee, let's call it the Arlington Civilian Accountability Board (ACAB), seeking authority over the police.

The ACAB proponents are prejudiced; discriminating not just against people based on their employment, but also their familial status. Not surprising really, since you also discriminate against people based on age.

The bias, and malice, is evident in the bylaw; not only are town employees ineligible to

serve ACAB, but you had to clarify that police officers, who are Town employees, are specifically not eligible to serve. Neither are former cops who might never have been town employees, nor their parents, or siblings, or spouse, or children, or grandparents or, well anyone not an ACAB believer, since "family" is not defined and has a wide range of applicability in areas as diverse as immigration, health care and labor laws. Recent Town Meetings show us how expansive your definition of "family" is. So roommates, hockey teammates and past romantic interests will no doubt be barred as well from ACAB.

How inclusive! At least, the bias, prejudice and discrimination is explicit. No doubt, the lack of experience in matters of law enforcement will serve ACAB's purpose.

The point? The point of the redundant bylaw language is to further demoralize police and end the generations long run of a safe, boring Arlington so that law enforcement can be re-tasked to policing dissent, speech and political opponents.

Congratulations!

Stephen Harrington

p.s. sorry for the resend - technical difficulties

#3

From: **Stephen Harrington** <sth.alist@gmail.com>

Date: Mon, May 16, 2022 at 8:28 AM

Subject: Vote NO on Article 38

To: Greg Christiana <gchristiana@town.arlington.ma.us>

Dear Town Meeting Moderator Greg Christiana,

Please, post this to the Arlington Town Meeting Email List.

Vote NO on Article 38.

The driving force behind land use in Arlington and improvements to private property over the past two decades has been the conversion of 2-family, 3-family and multi-unit properties to condominiums. [Look it up](#);

Use	FY2002	FY2022	change
2-family	2809	2081	-728
3-family	242	77	-165
condos	2002	3972	+1970

165 (3-families) * 3 + 728 (2-families) * 2 = 1951 compared to 1970 new condominiums over the past two decades. Compare that to the 82 additional single family homes (+1%) over the same 2002-2022 time frame.

Condominiums are starter homes in Arlington. Condos are the prevalent homes in urban centers. Condos represent the vast majority of housing development in Arlington. Condos are relatively affordable, owner occupied housing in Arlington.

Further, there have been a total of five (5!) two-family homes built in Arlington in the last 23 years.

2fer.png

Five new 2-family homes built in Arlington in 23 years. Two additional 3-families over the same time period.

The proponent and supporters marketing Article 38 as "2-families allowed by right" is just, umm, what's the phrase for advocacy that has no basis in reality used to sway decisions made on emotion and not critical understanding?

Strike 1. Article 38 has nothing to do with creating 2-family dwellings.

The loss of almost two thousand rental units has implications for a town that has a large fraction of renters. Article 38 does nothing to address rental demand. The discussion about rental properties disappearing in Arlington is remarkably absent.

Economics of condo conversions

There seems to be a deficient understanding about the economics of the conversion of 2-family and 3-family dwellings to condominiums combined with an often spoken, and definitely unsavory, myth of the greedy developer/builder.

Did the town (planning department), Article 38 proponents or any of you demonstrate the economics behind condo-conversions? Have you calculated the land, building costs and the monetization of rental income cash flows to determine developer profits?

Can you? I have for Arlington. Developer profits are (mostly) that monetization of rental income cash flows over an ever decreasing time horizon.

Sure, some number of condo conversions leave the original owner of the 2-family in place, when that owner has the capital, skills and patience for extensive renovations within the existing shell providing that owner with an injection of cash. Do you have the capital and skills to do that? Are these the greedy developers we hear about? It is no wonder many 2-family homeowners give up a portion of that income stream for immediate cash.

Many of Arlington's 2-family and 3-family dwellings are beyond their useful economic life and overwhelming replaced with newly constructed condominiums. As well, the replacement of older single family homes with newer single family homes that are larger makes sense- since homes function as more than just bedrooms and a kitchen now.

So who are these greedy developers?

Well, many developers are residents of Arlington, often doing a series of properties on one street, sometimes where they also live.

One of the most prolific developers in condo conversions is a Town Meeting Member. Some of your elected officials are real estate lawyers. The business of Arlington is real estate. These professionals understand the economics of the building developments in Arlington. Did you ask their opinions? Will any of them acknowledge a conflict of interest and recuse themselves from the vote on Article 38?

Have you considered that a factor in housing development in Arlington are these small-time, under capitalized, local developers? With debacles like Symmes and Mugar how much capital do you think Arlington can attract to build enough new housing to address the regional demand?

You think Town Meeting collectively or even individually can articulate the economics of development? Certainly Article 38 has not.

Strike 2.

Infrastructure

The opponents of Article 38 expressed fear over the incursion of 2-family (omg rentals!) into single family neighborhoods. At least that argument was abandoned once debunked. Unfortunately, Article 38 supporters, including the Town, have failed to address the financial impact increasing density in Arlington's R0 and R1 zones will entail. Let's discuss sidewalks and roads.

Attached are two images. The first image shows, in red, the streets that have no sidewalks in Arlington. Notice that the entirety of the R0 zone has few sidewalks. The two major secondary roads that serve R0 - Ridge St and Hutchinson Road along the Winchester Country Club - have little to no sidewalks. These steep streets have seen horrific accidents in the past. Increasing density will require Arlington to install about 50 miles of sidewalks in single family zones. About \$15M.

Sidewalks.png

Unlike East Arlington, there is little bike infrastructure, shops or public transportation in R0 and many other R1 zones in the hilly parts of Arlington. Increased density in these zones will result in an increase in car trips on Arlington roads.

Speaking of roads in Arlington, many roads in R0 and R1 zones are private ways. Below is a map, showing in red the private ways in Arlington; again concentrated in the hilly single family zones.

PrivateWays.png

These private ways are in atrocious condition. Watch someday as school officials and the public school bus travel over the crater filled Cutter Hill Road (and others) on their way to AHS. One divot that spans the entire width (<10') is 2 feet deep. That narrow passage way is shared by bikers, elementary school children on foot and about one car per minute during rush hours, of course with no sidewalk.

The Town Manager, reportedly was "advised" by a financial gadfly turned elected official, not to fill the potholes on private ways a couple of years ago. Now these roads are in atrocious condition.

Why would the Town advocate for increased density *before* addressing critical infrastructure needs? Why are we waiting for a tragedy *before* providing safety that is needed now in those areas?

The cost to bring 25 miles oi private ways to public safety standards is on the order of \$30M.

Voting to increase housing density *before* providing public safety infrastructure is short-sighted.

Strike 3.

I urge you to vote **NO** on Article 38.

Stephen Harrington

P.S. Two observations about Arlington's 2022 Town Meeting.

(1) The ongoing erosion of bodily autonomy while banning individual liberties in the name of public health continues. Did you really think you would have a monopoly on this "innovation" in the public arena? Why do you think, after more than two years, the entirety of the local public response to a global pandemic rests upon the state sanitation code instead of direct legislative action in a single party state?

Please, hold the gnashing of teeth, manufactured outrage and incessant shouting when

dictates of what you can do with your life, liberty and property impact your pursuit of happiness. Many of you had a hand in bringing authoritarian tactics to the public discourse on this topic.

(2) Anyone else lament the complete loss of minority opinions, of activists who hold public officials accountable for their actions and the suppression of debate in public and private forums? Or did you hope that no one will remember the profligate spending (e.g. blue bikes) when your unanimous vote to increase property taxes *another* 25% in the near term is already being bandied about for the fall? Perhaps, by hiding away from the public and limiting the public's ability to seek a redress of their grievances by dispersing responsibility to 252 basements you hope to shield yourself from the deserved opprobrium when residents become aware of what you have done.

#4

From: **Stephen Harrington** <sth.alist@gmail.com>
Date: Mon, May 2, 2022 at 6:31 AM
Subject: Article 16 - Leaf homeowners alone
To: Greg Christiana <gchristiana@town.arlington.ma.us>

Dear Town Meeting Moderator Greg Christiana,

Please, post this to the Town Meeting Members Email List.

=====

tl;dr Vote No on Article 16 - leaf blower bans.

There are 70+ trees on, or immediately adjacent to (on the property line), our home in Arlington. Many are mature oak, hickory and maple trees reaching 60' or more in height.

In the fall, more than 100 cubic yards of leaves drop onto our property every year. For comparison, a typical dump truck holds 5 cubic yards of (compacted) material.

Take a look at the Dec.2 picture attached here that shows our neighbor's fall cleanup, with a third as many trees. That pile was 60' long, 3' high and 9' wide; 60 cubic yards. It took three men, a vacuum system and two high paneled dump trucks half a day to remove those leaves.

We share a driveway with our neighbor that is about 20' wide, 130' long rising 25'; a steep grade shaded by three mature oak trees. Attached is a picture showing a typical fall day with leaves coating our driveway. Wet leaves can be as slippery as ice, not removing them as soon as possible is not an option.

As of today, May 2nd, oak and hickory trees have not pushed their leaves; but when they do there will be over 500 pounds of droppings on our driveway, usually near the end of May but can extend into June. In an acorn/nut producing year, there can be 2000 pounds of acorns and nuts on the driveway alone.

Our experience is not unique in our neighborhood zoned R0; many have similarly sized lots with an abundance of trees. Of our nearest neighbors; 7 (elderly) use commercial services of 2-4 men with leaf blowers. Two use electric blowers for a fraction of their property. Spring and fall clean-ups extend until late May in the spring and early December in the fall and can take the better part of a day.

I maintain our property in all seasons.

When we first bought our property, I used a broom to clear the driveway, once. It took about 3 hours. That's when I bought my first leaf blower. I sometimes use a rake, sometimes a broom, sometimes a power tool.

I invite any of the proponents of Article 16 to clear our driveway after the oaks drop using a broom.

For two decades, we dragged tarps of leaves uphill to compost piles that would be 12' in diameter and 10' high, leaving few at the curb. We routinely use the compost for gardening. Now about a third of the leaves end up, mostly in reusable barrels, at the curb.

Trees require maintenance; we have one removed, on average, about every three years, at an expense of about \$1500. Trimming occurs every other year for about \$1000. There are two sick trees on the property line; one will cost about \$3000 to remove. Sometimes trees get infected and need insecticides (moths) at a cost of about \$300 per tree.

Commercial services would charge us between \$3000 and \$5000 a year to provide weekly lawn care and spring/fall cleanups. Some people run in circles for their health; we maintain our property. Power tools such as snow blowers, chain saws, mowers, trimmers and leaf blowers enable homeowners the ability to do this.

Article 16 is a tax, that disproportionately impacts older and lower income residents. Users of commercial services will see increases in their costs since electric leaf blowers are less than half the time efficiency of gas powered blowers.

Approving article 16 will have negative unintended consequences.

It makes more economic sense to remove trees than to maintain them.

Have you weighed the pollution created by blowers with the inevitable loss of trees?

Article 16 tasks Arlington health department with enforcement, creating animosity with "offenders" to our public health employees. Do you think it is in the best interest to create tension between public health workers and residents? Ask any parking enforcement officers how often tension results from fining people.

Article 16 enforcement rests on neighbor complaints, leading to a less welcoming community. Ever wonder why overnight parking violations seem to cluster in certain neighborhoods? Yeah, your neighbors complained. One resident complains about leaf blowers, in retaliation another complains you parked across from their driveway, an unleashed dog, loud talking after 11P in the backyard. The tension escalates. This happens now.

The community Article 16 envisions is where neighbors complain about neighbors.

Have you considered incentives for homeowners with abundant trees, a community resource, through property tax breaks or blower buybacks to ease transition to less effective tools?

Nope, instead Article 16 penalizes residents with taxes, fines while creating animosity.

In 2013, Town Meeting voted a similar ban. A special election resulted in a majority of voters against such a ban.

Why do you think it is Town Meetings role to tell residents what to do?

I collected 800 of the 3000+ signatures for the special election. I also collected 200 signatures forcing a special town meeting that also refused to represent the will of voters, hurting Town Meetings' tenuous consent from residents.

I won't be collecting signatures to just overturn a leaf blower ban when Article 16 passes this time.

Vote No on Article 16.

Stephen Harrington

5

From: **Stephen Harrington** <sth.alist@gmail.com>

Date: Thu, Oct 12, 2023 at 4:58 PM

Subject: Fwd: Resolution for the Fair and Equal Property Tax Increase

To: Greg Chistiana <gchristiana@town.arlington.ma.us>

Dear Arlington Town Meeting Moderator Greg Christiana,

Please, send this resolution to the Town Meeting Members email list for the October 17 Special Town Meeting. I am shocked to find that Town Meeting has not endorsed or shown any formal support for the override and plans no discussion at the STM for the upcoming November 7 override special election.

Town Meeting does not support the November 7th override.

This resolution addresses that gap. As a non-binding resolution, there is [precedent](#) to allow non-binding resolutions that are not on the warrant. Even in the event of you deciding to not include this during the meeting, having it on the Town Meeting Members email list will bring their lack of support for the override to the general public's attention.

As you know, a Town Meeting Member has "co-authored" this resolution, in accordance with your arbitrary rules regarding questionable policies surrounding petitioning public bodies.

Stephen Harrington